

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Wednesday, June 24, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, June 24, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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21CV-03285	Sheila Andrews vs Steven M. Nailen, et al.
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Motion for Summary Judgment

Defendant Nailen's motion for summary judgment is GRANTED.

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, as modified (July 11, 2001).)

Defendant's undisputed material facts 13, 15, and 16, supported by admissible evidence, establish a prima facie case that Defendant had no actual knowledge of the dogs' dangerous propensities and is entitled to judgment as a matter of law.

In opposition, Plaintiff offers testimony that Defendant gave permission for the dogs to be on the property, that Defendant was aware of the dogs, that a next-door neighbor complained directly to Defendant that the dogs had broken through the fence on multiple

occasions, and that Defendant had an opportunity to view the dogs' behavior. (See, evidence cited in Plaintiff's response to Defendant's UMFs 13, 15, and 16.)

Yet Plaintiff's evidence does not establish a triable issue of material fact as to Defendant's actual knowledge of the dogs' dangerous propensities. Knowledge the dogs existed and the ability to view their behavior is not evidence Defendant knew the dogs were dangerous. Even knowledge that the dogs may have broken through a neighboring fence does not demonstrate actual knowledge the dogs had the propensity to be dangerous.

Without actual knowledge of the dogs' dangerous propensities, Defendant owed no duty to Plaintiff. As Defendant owed no duty to Plaintiff, he is entitled to judgment as a matter of law.

As the prevailing party, Defendant is ordered to submit a written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, for this Court's signature.

22CV-01720

Alexis Figueroa vs Foster Poultry Farms, et al.

Motion to Bifurcate Trial

Defendant's motion to bifurcate the trial on issues of liability and damages is GRANTED.

Here, the issue of liability is much simpler than the issue of damages. The jury must first resolve the dispute about whether Defendant negligently operated his vehicle, thereby causing Plaintiff's injuries. Only upon making such a finding will the jury be faced with determining the amount of any damages. The witnesses for each of these phases of trial will be substantially different, and the liability phase is expected to require significantly fewer witnesses than the damages phase.

In contrast to the relatively simple issue of liability, it is anticipated that up to forty (40) witnesses may be called regarding Plaintiffs' injuries and damages. In light of the potential damages and extensive medical treatment, which Defendant will challenge, the damages phase will be lengthy due to the testimony of lay witnesses, many treating physicians, and opinions of dueling experts. Furthermore, due to the nature of this tragedy and extensive injuries suffered by Plaintiff, if the jury were to hear evidence of Plaintiffs' damages before deciding the issue of liability, it might allow its sympathy to influence its liability decision.

In sum, if Plaintiffs do not prevail on the issue of liability, court time will not be unnecessarily expended on damages. If Plaintiffs prevail, the second phase will be more straightforward, focusing exclusively on any dispute regarding the scope of injuries and damages. This will simplify the issues for the jury. Bifurcation will expedite the trial, avoid unnecessary costs and delays, and prevent undue prejudice to Defendant.

The Court will sign the order lodged on May 28, 2026.

Motion to Compel Responses to Plaintiff's Form Interrogatories, Set One

Plaintiff's motion to compel responses to Form Interrogatories, Set One, is GRANTED.

Defendant R&B Grocery has failed to provide timely responses to Form Interrogatories, Set One. Objections are waived. Defendant R&B Grocery shall serve verified responses, without objections, on or before July 17, 2026.

The Court will sign the order lodged with the court on May 15, 2026.

Motion to Compel Responses to Plaintiff's Special Interrogatories, Set One

Plaintiff's motion to compel responses to Special Interrogatories, Set One, is GRANTED.

Defendant R&B Grocery has failed to provide timely responses to Special Interrogatories, Set One. Objections are waived. Defendant R&B Grocery shall serve verified responses, without objections, on or before July 17, 2026.

The Court will sign the order lodged with the court on May 15, 2026.

Motion to Deem Admitted Matters Contained in Requests for Admission

Plaintiff's motion to have Requests for Admission, Set One, deemed admitted is GRANTED.

Defendant has failed to provide timely responses to Requests for Admission, Set One. The matters specified in Plaintiff's Requests for Admission, Set One, are deemed admitted, unless Defendant serves, before the hearing, a proposed response to the request for admissions, that is in substantial compliance with Code of Civil Procedure § 2033.220.

Unless the court receives notice that Defendant has served, before the hearing, proposed responses to the requests for admission, the Court will sign the order lodged on May 15, 2026.

Motion to Compel Responses to Plaintiff's Demand for Production of Documents and Things

Plaintiff's motion to compel responses to Identification and Production of Documents and Things, Set One, is GRANTED.

Defendant R&B Grocery has failed to provide timely responses to Identification and Production of Documents and Things, Set One. Objections are waived. Defendant R&B Grocery shall serve verified responses, without objections, on or before July 17, 2026.

The Court will sign the order lodged on May 15, 2026.

25CV-06874 People vs \$118,165.00 US Currency

Status Conference

CONTINUED ON THE COURT'S OWN MOTION to July 29, 2026, at 8:15 a.m. in Courtroom 8 to trail the request for entry of default judgment.

Motion for Default Judgment

Plaintiff is ordered to submit for this Court's consideration the proper forms for a request for entry of default judgment including an order for this Court's signature which did not accompany the motion (*sic*) for default judgment. Upon submission of a proper order, it will be submitted for this Court's review. If the default judgment is entered, the continued hearing dates will be vacated.

CONTINUED to July 29, 2026, at 8:15 a.m. in Courtroom 8 in light of the above order.

26CV-01949 Jake LeBeaux vs City of Atwater, et al.

Hearing: In Camera

Appearance required.

26CV-03068 Sierra Ceja vs Xochitl Gomez Duarte

Order to Show Cause re: Restraining Order

Appearance required. Respondent filed a response to the request for a civil harassment restraining order.

26CV-03091 Vanessa Mercado vs Danielle Navarro

Order to Show Cause re: Restraining Order

Appearance required. No proof of service of the notice of hearing on Respondent has been filed with the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Peter MacLaren
Courtroom 9

627 W. 21st Street, Merced

Wednesday, June 24, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-03230	Discover Bank vs. Nickolas Lemas
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Motion for Judgment on the Pleadings

The unopposed motion for judgment on the pleadings by plaintiff Discover Bank is GRANTED without leave to amend the answer. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The Court finds that the complaint states facts sufficient to constitute a cause of action for breach of written contract against defendant Nickolas Lemas. Defendant's amended answer filed on September 4, 2024, admits all statements of the complaint and does not allege any facts constituting a defense. In the absence of any opposition indicating how Defendant might amend his answer to allege a defense, the motion is granted without leave to amend.

Judgment shall be entered in favor of Plaintiff and against Defendant. Plaintiff is entitled to costs as prevailing party. The Court will sign the proposed order and judgment submitted with the moving papers.

The court trial scheduled for October 14, 2026, is vacated.

24CV-03246 Cavalry SPV I, LLC vs. Elias Rios

Motion for Order Deeming Admitted Requests for Admission

Plaintiff's motion is DENIED without prejudice due to insufficient notice. The proof of service indicates that Plaintiff served the notice of motion and motion by mail from an address outside California on June 2, 2026, less than the required sixteen court days plus ten calendar days before the hearing (unless an order shortening time has been obtained). (Code Civ. Proc., § 1005(a)(13), (b); Cal. Rules of Ct., rule 3.1300(a).) The Court notes that this is the second time Plaintiff has filed and served this motion without sufficient notice.

Case Management Conference

Appearance required.

24CV-03931 Santa Clara County Federal Credit Union vs. Anthony Tamariz, JR

Status Conference – Status of Default Judgment

Appearance required. The Court notes that Defendant's default was entered on May 29, 2025. Appear to address the status of default judgment. If Plaintiff files a request for default judgment or request for dismissal prior to the hearing, the hearing will be vacated.

25CV-07050 Capital One, N.A. vs. Omar Aguilar

Motion for Judgment on the Pleadings

The unopposed motion for judgment on the pleadings by plaintiff Capital One, N.A. is GRANTED without leave to amend the answer. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The Court finds that the complaint states facts sufficient to constitute a cause of action for breach of written contract against defendant Omar Aguilar. Defendant's answer filed on January 20, 2026, admits all statements of the complaint and does not allege any facts constituting a defense. In the absence of any opposition indicating how Defendant might amend his answer to allege a defense, the motion is granted without leave to amend.

Judgment shall be entered in favor of Plaintiff and against Defendant. Plaintiff is entitled to costs as prevailing party. The Court will sign the proposed order and judgment submitted with the moving papers.

The case management conference scheduled for December 4, 2026, is vacated.

26CV-01826 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Motion to Abate or Stay Trial

Appearance required.

Court Trial: Unlawful Detainer

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Peter MacLaren
Courtroom 9

627 W. 21st Street, Merced

Wednesday, June 24, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
25CV-00525	Cavalry SPV I, LLC vs. Veena Kalkat
Court Trial	
Appearance required.	
25CV-01291	Bank of America, N.A. vs. Alejandro Bueno
Court Trial	
Appearance required.	
25CV-01564	Portfolio Recovery Associates, LLC vs. Kirandeep Chima
Court Trial	
Appearance required.	

25CV-01691 Portfolio Recovery Associates, LLC vs. Rebeca Sanchez

Court Trial

Appearance required.

25CV-02650 Synchrony Bank vs. Tracy Real

Court Trial

Appearance required.
